

26STCP00771 26STCP00771

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCP00771 Hearing Date: August 27, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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PEILIN GUO, et al.

Plaintiff(s),

vs.

TIMOTHY

ROBERT ROTH, et al.,

Defendant(s).

Case No.:

26STCP00771

Hearing Date:

August 27, 2026

[TENTATIVE]

ORDER RE: MOTIONS TO QUASH SERVICE OF SUMMONS

Respondents Timothy Robert Roth ("Roth") and 6211 S. Vermont, LLC ("Vermont"), (collectively, "Respondents") move to quash the service of the petition by petitioners Peilin Guo ("Guo") and Rumi Lakha ("Lakha"), each individually and as trustees of the Lakha-Guo Family Trust ("Trust") (collectively, "Petitioners").

The motion is granted.

I.

Procedural History

On February 24, 2026, Petitioners filed their petition to inspect Vermont's records under Corporations Code section 17704.10.

On March 11, 2026, Petitioners filed proofs of service showing they served the petition on Respondents by substituted service through Roth's co-occupant Matt Roth ("Matt")^[1] on March 9, 2026.

At the June 4, 2026 trial setting conference, Respondents made no appearance.

On June 15, 2026, Roth filed his motion to quash service of the petition. On June 29, 2026, Vermont filed its motion to quash service of the petition. On July 22, 2026, the Court continued the hearings on both motions from August 13, 2026 to August 27, 2026. On July 22, 2026, Petitioners filed their consolidated opposition to the motions. On August 18, 2026, Respondents filed their consolidated reply to the motions.

On June 23, 2026, Respondents filed a Notice of Related Case for Pelin Guo, et al. v. Timothy Robert Roth, et al., LASC case no. 26STCV01571 ("Civil Action").

II.

Request for Judicial Notice

Petitioners seek judicial notice of the following exhibits:

(1) the proof of service on Roth in the Civil Action (Leonard Decl., Ex. 1);

(2) the proof of service on Vermont in the Civil Action (Leonard Decl., Ex. 2); and (3) the complaint in the Civil Action (Leonard Decl., Ex. 8).

As Respondents note, these documents are judicially noticeable for their existence in the record in the Civil Action, but not for the truth of their contents. (E.g. *Arce v. Kaiser Foundation Health Plan, Inc.*, (2010) 181 Cal. App.4th 471, 482 ["While we may take judicial notice of court records and official acts of state agencies (Evid. Code, § 452, subds.(c), (d)), the truth of matters asserted in such documents is not subject to judicial notice. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564–1565, 8 Cal.Rptr.2d 552.)"].)

The mere existence of these filings in the record of the Civil Action is not relevant here. The requests are therefore denied.

III.

Discussion

A summons may be served by personal delivery of a copy of the summons and complaint to the person to be served. (Code of Civil Procedure ["CCP"] [2] § 415.10.)

For an individual not a minor, not subject to a guardianship, conservatorship, or similar fiduciary arrangement, and not a candidate for election concerning certain election laws, the person to be served is that individual or a person authorized by that individual to receive service of process. (CCP §§ 416.60-416.90.)

Alternatively for an individual, if the person to be served cannot be personally delivered with reasonable diligence, they may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. (CCP § 415.20(b).)

For a corporation, the person to be served may be (a) a designated agent for service of process; (b) the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process; or (c) if the corporation is a bank, to a cashier or assistant cashier. (CCP § 416.10.) [3]

Alternatively for a corporation, a summons may be served by leaving a copy of the summons and complaint during usual office hours in the office of the person to be served (that is, those specified in the preceding paragraph) with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. (CCP § 415.20(a).) If no physical address is known, the same procedure may be followed at the person's usual mailing address, unless it is a United States Postal Service post office box. (CCP § 415.20(a).) When service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. (CCP § 415.20(a).)

Unless a statutory provision specifies otherwise, the general rules for service governing a summons and complaint apply to an action brought by a petition. (*Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152.)

A defendant may serve and file a notice of motion to quash service of summons on the ground of lack of jurisdiction of the court over him or her. (§ 418.10(a)(1).) The rationale behind this statute is that compliance with the statutory procedures for service of process are essential to establish personal jurisdiction. (See *Rockefeller Technology Investments (Asia) VII v. Changzhou Sinotype Technology Co., Ltd.* (2018) 24 Cal.App.5th 115, 133.) Failure to conform to statutory requirements means that all that follows is void. (*Honda Motor Co. v. Superior Court* (1992) 10 Cal.App.4th 1043, 1048.)

1.

Respondents Present Sufficient Evidence to Place
the Issue Before the Court

The return of a registered process server establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return. (Evid. Code § 647.) It is therefore not necessary to obtain the process server's separate testimony. (The Bank of New York Mellon v. Preciado (2013) 224 Cal.App.4th Supp. 1, 7.) Similarly, "[t]he filing of a proof of service declaration ordinarily creates a rebuttable presumption that the service was proper, but only if the service declaration 'complies with the statutory requirements regarding such proofs.'"² (Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1163, citing Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426 1441-42.)

Based on this presumption, the Court must assume a defendant was properly served "unless and until evidence is introduced which would support a finding" that defendant was not properly served, at which point the Court "shall determine the existence or nonexistence of the presumed fact from the evidence and without regard to the presumption." (Evid. Code § 604.)

Therefore, in a motion to quash, the defendant is the moving party and must present some admissible evidence (declarations or affidavits) to place the issue before the court. (See also School Dist. of Okaloosa County v. Superior Court,³ (1997) 58 Cal.App.4th 1126, 1131 ["School District"].)

Respondents submit a declaration by Matt stating he is not an occupant of the residence at which the process server claims to have provided service, and further that he never received the petition. (Matt Decl., ¶ 2.)

Accordingly, Respondents have presented sufficient evidence to place the issue before the Court.

2.

Petitioners Have Not Established Valid Service of Process

As noted above, once the defendant has provided evidence which would support a finding the defendant was not properly served, the plaintiff then has the burden to show, by a preponderance of the evidence, valid service of process in conformance with this state's service statutes. (Evid. Code §§ 604, 647; See also School District,

supra, 58 Cal.App.4th at 1131.)

While Petitioners bring evidence calling Respondents' account of events into question, they neglect their burden to establish valid service.[4]

Petitioners present only a Declaration by counsel submitting the complaint and proofs of service in the Civil Action (Leonard Decl., Exs. 1-2, 8), the proof of service for Vermont in this action (Leonard Decl., Ex. 4), and various emails and other documents served by mail or electronic service (Leonard Decl., Ex. 3, 5-7).

Petitioners' only argument that their proofs of service should be believed over Matt's declaration, contained in a footnote, is the sentence stating that "[c]learly the process server did not make up the name Matt Roth and only could have obtained that name from the person who answered the door at the residence." (Opp. at 3, fn. 3.) This is insufficient.

Petitioners also rely on multiple paths of argument concluding that Respondents had actual notice. And while Petitioners persuasively show Respondents likely had actual notice, actual notice is not a substitute for valid service of process. (E.g. American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 392 ["Actual notice of the action alone, however, is not a substitute for proper service and is not sufficient to confer jurisdiction."]; Summers v. McClanahan (2006) 140 Cal.App.4th 403, 414 ["no California appellate court has gone so far as to uphold a service of process solely on the ground the defendant received actual notice"].)

Accordingly, Petitioners have not met their burden to show valid service of process.

IV.

Conclusion

Petitioners have not met their burden to show valid service of process. The motion is granted. Petitioners are directed to properly serve Respondents.

The hearing on Petition for Writ of Mandate, currently calendared for October 13, 2026, is advanced and vacated, and replaced with a

Trial Setting Conference for the same date at 9:30 a.m. in Department 834.

Petitioner is ordered to give notice.

Date: August 27, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

To avoid confusion with respondent Roth, the Court will refer to Matt Roth by his first name.

[2]

All further statutory references are to the CCP unless otherwise stated.

[3]

This statute also provides alternatives for certain corporations as provided in specific statutory regimes not applicable to the current matter.

[4]

The Court also notes that Petitioners failed to cite to a single case, statute, or other legal authority supporting their positions. This alone would be grounds not to consider Petitioners' arguments. As Petitioners have the burden to show valid service of process, this is independently fatal.